


Date: 1/31/19

CONTRACT # _____

BELVOIR RANCH GRAZING LEASE AGREEMENT

This BELVOIR RANCH GRAZING LEASE (this "Lease") is made and entered into this _____ day of _____, 2019, by and between CITY OF CHEYENNE, WYOMING, the mailing address of which, for purposes of this Lease, is Municipal Building, 2101 O'Neil Avenue, Public Works Department, Room 210, Cheyenne, Wyoming 82001 ("Lessor") and William A. Gross, Managing Partner Wyoming Cattle Co., LLC, the mailing address of which, for purposes of this Lease, is 6255 County Road 213, Pine Bluffs, WY 82082 ("Lessee").

WITNESSETH:

1. **Leased Premises.** For and in consideration of the promises, covenants, and agreements hereinafter set forth to be kept and performed by Lessee, its successors and assigns, Lessor, for the term hereinafter set forth, does hereby lease, demise, and let unto Lessee, for grazing purposes, the parcel of real estate situate in the County of Laramie, State of Wyoming, which is legally described on Exhibit "A" less hay fields by headquarters and to include State leased lands (as shown on attached Pasture Map, Exhibit "B") attached hereto and incorporated herein by this reference (the "Leased Premises"). The Leased Premises shall include all pastures and related improvements located on the Leased Premises. The Leased Premises shall include improvements and fixtures of a permanent nature located on or appurtenant to the Leased Premises.

Lessee shall be entitled to graze not less than 1,050 AUMs and not more than 1,540 AUMs on the Leased Premises pursuant to this Lease except as otherwise mutually agreed in writing by both parties.

- a. **Exclusions.** The Lease Premises shall not include, and Lessor expressly reserves, any and all hunting and other recreational privileges; provided, however, that the exercise of any such reserved privileges by Lessor or its assigns shall not unreasonably interfere with Lessee's use of the Leased Premises as a ranch. Similarly, the Leased Premises shall not include, and Lessor expressly reserves, all coal, oil, gas, other minerals and water located in, under and to be produced from the Leased Premises or any part thereof, it being mutually agreed the Lessee, its successors and assigns, grants to Lessor

the right to enter in and upon the surface of the Leased Premises for the purpose of operation, development and production of such minerals and water and shall allow Lessor to use the Leased Premises or any part thereof as shall be required for buildings, tanks, pipelines, fixtures, and equipment in connection herewith. Furthermore, Lessor, and any architects, engineers or other agents, independent contractors, or employees or Lessor, shall have the right, at any time during the term of this Lease, and from time to time, to enter upon the Leased Premises, to show the Leased Premises, to make soil and water tests, to survey the Leased Premises, to acquire engineering and other data with respect to the Leased Premises, and/or to install utility lines or facilities over, under, or across the Leased Premises. In the event that damage is caused to the surface of the Leased Premises, or to Lessee's livestock, as a result of Lessor's activities, Lessor shall adjust the Lessee's lease payment accordingly.

- b. The Belvoir Ranch was purchased by the City of Cheyenne in response to the need to site a new landfill and develop ground water resources. (A landfill will not be placed on the Belvoir Ranch for the foreseeable future since expansion of the current landfill has been approved.) While development of ground water resources is a future development (potentially years away), City investigative work could be ongoing on ranch property. These activities by the City and/or its agents will have priority for land use. Very little impact is anticipated to the grazing opportunities.
 - c. A wind power developer (NEXTERA ENERGY Resources) holds a lease to potentially place wind towers on the Belvoir Ranch. This would include construction and placement of wind towers, transmission facilities, and access roads. If the developer exercises this lease, this grazing lease will be renegotiated to accommodate this development.
 - d. Portions of the Ranch may be developed for non-motorized recreational activity. This would most likely take place in the southwestern portion of the Ranch and consist of a trail from the State section adjacent to Harriman Road to the "Big Hole." Minimal impact on grazing is anticipated; however, the grazing lease may be renegotiated to accommodate this development.
2. **Term of Lease.** This Lease shall be for a term of 3 (three) years commencing on the date hereof and expiring December 31, 2021. Upon written request by the Lessee, Lessor may extend the Lease for one additional 3-year period. Requests shall be submitted by written notice to Lessor 90 days before the scheduled expiration of the Lease. Any such extension shall be on the same terms and conditions as set forth in the Lease or renegotiated by mutual agreement. Any Agreement by the Lessor to so extend shall be conditioned upon Lessee not being in default at the time of giving such notice or at the commencement of the

extended term and that Lessee has practiced good stewardship of the property and facilities as determined by the Lessor.

3. **Rental.** Annual rental for this Lease shall be in the amount of \$187,477.50 which rental shall be payable as follows:
 - a. The sum of \$93,738.75 shall be due and payable upon stock arrival or before June 15, each year. (1/2 of total, adjusted as necessary to reflect actual number (head) of stock allowed).
 - b. The remaining sum of \$93,738.75 (1/2 of total amount) shall be due and payable upon stock removal or before October 31, each year.
 - c. Annual Rental is based on a standard of 1,050 AUMs for five months at \$35.71 per AUM (\$25.00 per yearling).
 - d. The Lessee will graze and pay for a minimum of 1,050 AUMs (1,500 yearlings) for 5 months unless the City determines a lower number or timeframe based on the condition of the pasture. Lessee will pay for actual use determined by AUM and time on the range.
 - e. Lessor shall pay state lease fees and any real and personal property taxes which are assessed against the Leased Premises during the term of this Lease, and all water assessments, fees and related charges.
 - f. Lessee shall pay any personal property taxes with respect to Lessee's personal property and chattels. In addition, Lessee shall pay all expenses normally associated with grazing operations incurred by Lessee in connection with its use of the Leased Premises.
4. **Ranching Methods.** Lessee shall use the Leased Premises for grazing and related purposes only. Lessee agrees to follow the best grazing, ranching, and husbanding practices prevailing and shall operate the Leased Premises in good, first class, and workmanlike manner in such a way as to not damage or harm the grass plants growing thereon by over grazing. **Lessor shall bear the expense of chemicals for spraying of noxious weeds and shall be responsible for all spraying and application costs.** Lessee shall conduct all of its operations on the Leased Premises in full compliance with all applicable federal, state or local laws, rules regulations and ordinances.
5. **General Stipulations.**
 - a. Summer grazing normally allowed May through October depending on range conditions except as otherwise mutually agreed in writing by both parties.

- b. Range conditions permitting, no more than approximately 1,540 AUMs total will be allowed on the property. This number could be less depending on range and water availability.
- c. Pasture rotation will follow a time frame as established by the Lessor in consultation with the Laramie County Conservation District. Livestock will not be allowed to be split between pastures or moved between pastures without the express permission of the Lessor through the Ranch Manager.
- d. It is the sole responsibility of the Lessee to monitor and move cattle as required. The Ranch Manager will provide oversight only.
- e. Veterinary care, medicines, and supplies and any salt or minerals will be the responsibility of the Lessee.
- f. The Lessor will not be responsible for any "death loss".
- g. Lessor will provide the infrastructure (wells, generators, piping, tanks, etc.) to supply water. However, it is the Lessee's responsibility to fuel generators and ensure availability of water to cattle. If there is a problem with the water infrastructure, the Lessee should notify the City and take interim action to provide livestock with water until the infrastructure can be repaired by the City. Damage to water infrastructure (tanks, etc), caused by livestock, will be the responsibility of the Lessee.
- h. Maintenance of corrals, fences, and any other ranch facilities relating to grazing operations will be the responsibility of the Lessee. This includes providing fencing materials. Lessee is responsible for full repair of any damage caused to ranch facilities or infrastructure by Lessee's operations. Access to property will be provided a least 30 days prior to stock arrival for site preparation. Gates will be kept closed at all times.
- i. Irrigated pastures near the ranch headquarters are not included in this lease. These excluded pastures are identified as all or part of CIN 13,14,15,16,17 on the attached Pasture Map.
- j. Up to six (6) saddle horses can be kept on the premises during the lease period. Care of stock will be the responsibility of the Lessee. Lessee may operate ATVs for cattle management. Lessee assumes all liability related to such activities.
- k. **All dates of use, pasture locations, and maximum numbers of head of stock will be determined by the Lessor. The decisions will be based on range conditions at the time. Lessor reserves the right to determine, under any contingent circumstances (such as flood, fire, drought, etc.), when and how many head of stock the range can carry at any given time and reserves the right to require immediate reduction or removal of livestock to those numbers deemed appropriate by the Lessor.**

1. The residence at ranch headquarters (living quarters for the Ranch Manager) is not included in this lease.
 - m. A City employee functioning as a ranch manager will be living on-site and be the main point of contact between the Lessee and Lessor. This person will oversee the arrival and removal of all livestock and coordinate the lease agreement activities.
6. **Maintenance.** To the extent normally associated with grazing of livestock, Lessee shall keep the Leased Premises and all improvements thereon, including, but not limited to, fences, and corrals, in their current state of order and repair. Lessee will control soil erosion as completely as practicable. Lessee shall commit no waste and shall surrender the Leased Premises at the end of termination of this Lease in as good a condition as they are now, excepting wear and tear, and pasture rotation vacation for cause.
7. **Termination of Lease.** This lease may be terminated by either party, with written notice provided not later than October 31 prior to the year the lease is to be terminated.
8. **Removal of Lessee's Property.** On or before December 31, 2021, without regard to whether Lessee has requested an extension of the term of this Lease, Lessee shall remove from the Leased Premises all items of personal property and equipment belonging to Lessee unless otherwise mutually agreed in writing by both parties.
9. **Insurance Requirements.** The Lessee must provide proof of the following insurance coverages, to be in force while occupying the Leased Premises:
- a. **Farm and Ranch Personal Lines Liability Insurance:** For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$250,000 per claimant, \$500,000 per occurrence for the entire term of the contract.
 - b. **Business Automobile Insurance:** Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$500,000 per occurrence for the entire term of the contract.
 - c. **Workers' Compensation:** Workers' Compensation coverage shall be in effect, as required by Wyoming law, for all employees or agents providing services under this agreement. Lessee shall provide the Lessor with proof of workers' compensation or employer's liability insurance coverage.

- d. **Additional Insurance Information:** The Lessee shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation, and shall provide the City with a copy of the endorsements. Lessee shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this agreement. It is understood and agreed that these policies are primary and not contributory. All insurance certificates provided by Lessee must include a clause stating that the insurance may not be canceled, amended or allowed to lapse without at least thirty (30) days advance written notice to the City of Cheyenne. In addition, Lessee shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, and certificates shall not affect the City's rights or Lessee's obligation hereunder. Any insurance company providing coverage under this agreement shall have a minimum A.M. Best rating of A- (excellent).
10. **Governmental Immunity.** The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Lease pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. §1-39-101, et seq.
11. **Mechanic's Liens.** Lessor shall not, under any circumstances, be liable for the payment of any expenses incurred or for the value of any work done or materials furnished to the Leased Premises by Lessee. All such work shall be at Lessee's expense, and Lessee shall be solely responsible to the contractors, laborers, or others furnishing labor and material to the Leased Premises.
12. **Right to Inspect.** Lessor reserves the right for itself, its agents, employees, contractors and representatives, at any and all times to enter upon the Leased Premises, to inspect the Leased Premises, and to protect itself against loss occasioned by any negligence or neglect of Lessee.
13. **Illegal Use.** Lessee agrees not to use or permit the Leased Premises to be used for any unlawful or illegal business or purpose.
14. **Default by Lessee.** If Lessee shall default in its obligations to make due and punctual payment of any rent or additional payments required to be paid by Lessee under this Lease, or if Lessee shall fail to perform any other obligations assumed by it under this Lease, Lessor may give written notice to Lessee, specifying the nature of the default, stating that this Lease shall expire

on the date specified in such notice, which shall be at least ten (10) days after the giving of such notice; and upon the date specified in such notice, this Lease and all of the rights of Lessee hereunder shall terminate, except as expressly provided otherwise herein. It is agreed that if Lessee shall fail to pay any installments or rent when due and such failure shall continue for a period of ten (10) days following the due date, said installment of rent shall bear interest at the rate of ten percent (10%) per annum until paid. Lessor reserves the right to make any payments or perform any action required hereunder by Lessee (but shall not be required to do so); and all amounts so expended by Lessor, together with interest at the rate of ten percent (10%) per annum shall be immediately due and payable by Lessee to Lessor. In lieu of the right of Lessor to terminate this Lease in the event of a default by Lessee, Lessor shall have the right, at his election, to reenter and take possession of the Leased Premises; and Lessee shall peaceably vacate the Leased Premises. In such event, Lessee shall remain liable for all unpaid rentals for the remaining term of this Lease. If Lessor elects to reenter as provided herein without terminating this Lease, Lessor may, from time to time, without terminating this Lease, relet the Leased Premises or any part thereof for such term or terms, and at such rental or rentals, and on such terms and conditions as Lessor may deem advisable. No such reentry or taking of possession of the Leased Premises by Lessor shall be construed as an election on Lessor's part to terminate the Lease unless written notice of termination is delivered to Lessee by Lessor. In the event of such repossession, Lessee shall pay to Lessor, as current liquidated damages, the then value of the rent and other sums payable under the terms of this Lease as if such repossession had not occurred; less the net proceeds, if any, of any reletting of the Leased Premises after deducting all of Lessor's expenses in connection with such reletting, including, without limitation, all repossession costs, brokerage commissions, legal expenses, attorney's fees, and expenses or repair and preparation of the Leased Premises for such reletting.

15. **Attorney's Fees and Costs.** In the event either if the respective parties hereto shall default in any of its covenants or obligations herein provided and the party not in default commences legal or equitable action against the defaulting party, each party expressly agrees to pay their own expenses and attorney's fees of said litigation.
16. **Assignment.** It is agreed and understood that this agreement shall not be assigned nor shall any portion of the Leased Premises be sub-let in whole or part by the Lessee.

17. **Notices.** Any notice or other communication given by either party to the other relating to this Lease shall be in writing, and shall be delivered in person, sent by certified mail, return receipt requested, sent by reputable overnight courier, or sent by facsimile transmission (with evidences or such transmission received) to such other party at the respective address set forth below (or at such other address as may be designated from time to time by written notice given in the manner provided herein). Such notice shall, if hand delivered or personally served, be effective immediately upon receipt. If sent by certified mail, return receipt requested, such notice shall be deemed given on the second business day following deposit in the United States mail, postage prepaid and properly addressed; if delivered by overnight courier, shall be deemed effective on the first business day following deposit with such courier; and if delivered by facsimile transmission, shall be deemed effective when received.

If to Lessor, to:

City of Cheyenne
Public Works Department, Room 210
2101 O Neil Avenue
Cheyenne, Wyoming 82001
Facsimile: (307)-637-6256

If to Lessee, to:

William A. Gross, Managing Partner Wyoming Cattle Co., LLC
6255 County Road 213
Pine Bluffs, WY 82082
Facsimile: (307) 245-3578

18. **Binding Effect.** This Lease shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns.
19. **Site Inspection.** Lessee agrees that Lessee was given the opportunity to take a tour of the ranch prior to submitting Lessee's successful proposal. Lessee hereby leases the premises and those improvements which are part of the Leased Premises in their current "AS IS" condition. Lessor has made no warranties or guarantees regarding the condition of the Leased Premises, nor its productive capabilities.
20. **Idemnification Hold Harmless.** Each party agrees to be responsible for any loss, claims, damages, or demands resulting from their individual negligence.

The City does not waive defenses available to it under the governmental claims act.

21. **Compliance with Laws.** The parties covenant and agree that they will perform their obligations as provided in the lease in accordance with all applicable laws and ordinances.
22. **Independent Contractor.** The Lessee shall function as an independent contractor for the purpose of this agreement. The Lessee shall assume sole responsibility for any debts or liabilities that may be incurred by the Lessee in fulfilling the terms of this agreement. Nothing in this agreement shall be interpreted as authorizing the Lessee or its agents or employees to act as an agent or representative of or on behalf of the City of Cheyenne or to incur any obligation on behalf of the City of Cheyenne.

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CITY OF CHEYENNE, WYOMING

IN WITNESS WHEREOF, the parties hereto have executed this Ranch Grazing Lease Agreement as of the day and year first above written.

City of Cheyenne, "Lessor"

By: _____
Marian J. Orr, Mayor

Date: _____

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

Date: _____

"Lessee"

By: _____

Date: _____

Attest: _____

Date : _____

EXHIBIT "A"

Legal Description of the Leased Premises

TOWNSHIP 13 NORTH, RANGE 68 WEST OF THE 6TH P.M., LARAMIE COUNTY WYOMING

SECTION 15:

All south of the Union Pacific Railroad Company Right of Way.

SECTION 17:

All South of the Union Pacific Railroad Company Right of Way, as the same existed September 14, 1907, EXCEPT that part conveyed to the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 19:

All

SECTION 21:

All, EXCEPT that part conveyed to the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 22:

All, EXCEPT NE1/4NE1/4 and SW1/4SW1/4 and EXCEPT that part conveyed to the Union Pacific Railroad Company, in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 23:

All, EXCEPT that part conveyed to the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records, and EXCEPT Easement conveyed to the State of Wyoming Highway Department as described in Instruments recorded in Book 301, Page 334 and in Book 336, Page 21, Laramie County, Wyoming records.

SECTION 25:

All, EXCEPT that part conveyed to the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 26:

N1/2N1/2 and S1/2NE1/4

SECTION 27:

All

SECTION 29:

All, EXCEPT that part conveyed to the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 31:

All north of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING

SECTION 3:

All north and west of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 4:

All north of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records, EXCEPT SW1/4NW1/4 of said Section.

SECTION 5:

All north of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 6:

All north and west of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 7:

All north and west of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records, EXCEPT that portion lying south of the Union Pacific Railroad right of way.

TOWNSHIP 13 NORTH, RANGE 69 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING

SECTION 13:

All of the S1/2SE1/4 and SE1/4SW1/4, lying south of the Union Pacific Railroad Company Right of Way as the same existed August 23, 1929.

SECTION 14:

S1/2SW1/4, EXCEPT Railroad Right of Way excepted in Warranty Deed recorded in Book 368, Page 14, Laramie County, Wyoming records.

SECTION 15:

All south of the Union Pacific Railroad Company Right of Way, EXCEPT those parts conveyed to the State of Wyoming for highway as described in instruments recorded in Book 280, Page 274 and in Book 636, Page 445, Laramie County, Wyoming records.



SECTION 16:

A tract of land situated in the NW1/4SW1/4, more particularly described as follows: Commencing at the southwest corner of said Section 16; thence N. 4 degrees 20'44"E., a distance of 2325.5 feet to the point of beginning; thence N. 65 degrees 59'18"E., a distance of 40.00 feet; thence N. 24 degrees 00'42"W., a distance of 40.00 feet; thence S. 65 degrees 59'18"W., a distance of 40.00 feet; thence S. 24 degrees 00'42"E. to the point of beginning;
AND, a tract of land situated in the NW1/4SW1/4, more particularly described as follows: Commencing at the southwest corner of said Section 16; thence N. 34 degrees 00'05"E., a distance of 1842.6 feet to the point of beginning; thence S. 79 degrees 35'42"E., a distance of 40.00 feet; thence N. 10 degrees 24'18"E., a distance of 40.00 feet; thence N. 79 degrees 35'42"W., a distance of 40.00 feet; thence S. 10 degrees 24'18"W. to the point of beginning
AND, all south of the Union Pacific Railroad Company Right of Way, EXCEPT those parts conveyed to the State of Wyoming for highway as described in instruments recorded in Book 280, Page 274 and in Book 636, Page 445, Laramie County, Wyoming records, and EXCEPT two parcels of land designated as Tracts 101-2 and 101-3 in Civil Action No. 4312 United States District Court for the District of Wyoming, a certified copy of the Final Judgment in such action is recorded in Book 898, Page 104, Laramie County, Wyoming records.

SECTION 17:

A tract of land situated in the NE1/4SE1/4, more particularly described as follows: commencing at the southeast corner of said Section 17; thence N. 12 degrees 45'36"W., a distance of 2422.7 feet to the point of beginning; thence N. 5 degrees 09'05"E., a distance of 40.00 feet; thence N. 84 degrees 50'55"W., a distance of 40.00 feet; thence S. 5 degrees 09'05"W., a distance of 40.00 feet; thence S. 84 degrees 50'55"E., to the point of beginning; AND, all south of the Union Pacific Railroad Company Right of Way, EXCEPT those parcels conveyed to the State of Wyoming for highway described in instruments recorded in Book 280, Page 274 and in Book 316, Page 175 and in Book 336, Page 317 and in Book 636, Page 445 and in Book 636, Page 447, Laramie County, Wyoming records, and EXCEPT that parcel conveyed to Kenneth A. Sutherland as described in instrument recorded in Book 340, Page 440, Laramie County, Wyoming records, and EXCEPT that parcel conveyed to E.H. Caley as described in instrument recorded in Book 347, Page 42, Laramie County, Wyoming records, and EXCEPT those parcels conveyed to E.H. Caley and Princess Caley, as described in instruments recorded in Book 400, Page 531 and in Book 402, Page 55, Laramie County, Wyoming records, and EXCEPT a parcel of land designated as Tract 101-4 in Civil Action No. 4312 in United States District Court for the District of Wyoming, a certified copy of the Final Judgment in such action is recorded in Book 898, Page 104, Laramie County, Wyoming records.

SECTION 19:

All that portion of SE1/4SE1/4 lying south of a parcel of land designated as Tract 101E-2 in Civil Action No. 4248 in the United States District Court for the District of Wyoming, a certified copy of the Final Judgment in such action is recorded in Book 898, Page 96, Laramie County, Wyoming

records.

SECTION 20:

All that portion lying south and east of those parcels of land designated as Tracts 101 and 101E-2 in Civil Action No. 4248 in the United States District Court for the District of Wyoming, a certified copy of Final Judgment in such action is recorded in Book 898, Page 96, Laramie County, Wyoming records;

AND a tract of land situated in said Section 20, more particularly described as follows: beginning at the northeast corner of said Section 20; thence west along the north line thereof to the northeast corner of the $W1/2W1/2W1/2$ of said Section 20; thence south along the east line of said $W1/2W1/2W1/2$ to the southwest corner of the $E1/2NW1/4SW1/4$ of said Section 20; thence east along the south line of the $N1/2S1/2$ of said Section 20 to the southwest corner of $SE1/4SE1/4NE1/4SW1/4$; thence in a northeasterly direction to the southeast corner of the $NE1/4NE1/4$ of said Section 20; thence north along the east line of said Section 20 to the point of beginning.

SECTION 21:

All

SECTION 22:

All

SECTION 23:

All, EXCEPT that part of $N1/2NE1/4$ lying south and east of Twin Mountain County Road and EXCEPT that part conveyed to the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 24:

All lying north and east of the right of way of the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records, EXCEPT the $NW1/4NW1/4$ of said Section.

SECTION 25:

All lying east of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 26:

All lying north and west of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 27:

All lying north and west of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

SECTION 28:

All



SECTION 29:
All

SECTION 30:
All

SECTION 31:
All

SECTION 32:
All

SECTION 33:
All

SECTION 34:
All lying west of the Union Pacific Railroad Company Right of Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING

SECTION 1:
All

SECTION 12:
All, EXCEPT that part conveyed to the Union Pacific Railroad Company as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records, and EXCEPT that portion lying south of the Union Pacific Railroad right of way.

TOWNSHIP 13 NORTH, RANGE 70 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING

SECTION 15:
A strip of land in said Section 15, as a stock driveway, 198 feet wide, being 99 feet on each side of the center line described as follows: beginning at a point on the south line of said Section 15, a distance of 592.8 feet west of the south quarter corner of said Section 15; thence N. 18 degrees east parallel to and distant 99 feet wide from the west right of way line of County Road 65 as said Road existed March 1949, a distance of 1240 feet to a point; thence N. 11 degrees 30'E., parallel to said County Road right of way line, a distance of 1060 feet to a point; thence N. 40 degrees east parallel to said County Road right of way line, a distance of 390 feet to a point, said point being south 99 feet from the south right of way line of U.S. Highway 30; thence N. 82 degrees 30'W, parallel to said Highway right of way line, a distance of 1180 feet to a point of curve; thence on a curve to the right, whose radius is 2100 feet and whose central angle is 46 degrees 24', parallel to said Highway right of way line through a curve length of 1700 feet to the point of tangent; thence N. 36 degrees 06'W. parallel to said Highway right of way line, a distance of 240 feet to a point on the south right

~~of way line of the Union Pacific Railroad, said point bears N. 2 degrees
45'E., a distance of 1035 feet from the west quarter corner of said
Section 15.~~

SECTION 25:

All lying south and east of County Road No. 4 or 9, also known as Twin Mountain County Road, EXCEPT Branch County Road No. 31 and EXCEPT County Road No. 4 or 9, also known as Twin Mountain County Road.

SECTION 35:

All that part of E1/2 lying southeast of County Road No. 9 also known as Harriman or Red Mountain Road.



State Lands Leased by City of Cheyenne under Lease No. 1-6983 and shown as part of the available pastures on the attached Pasture Map. Including those lands as designated by the State Lease in part or whole within:

Township 13 North, Range 70 West of the 6th P.M., Laramie County Wyoming
Section 36

Township 13 North, Range 68 West of the 6th P.M., Laramie County Wyoming
Section 16
Section 18
Section 20
Section 24
Section 26
Section 28
Section 30

Township 13 North, Range 69 West of the 6th P.M., Laramie County Wyoming
Section 36



RECORDED 5/06/2004 AT 3:18 PM PAGE 306523 RW# 10114 BOL 1025



ADDENDUM 3

REQUEST FOR PROPOSAL (RFP-5-19)

For

BELVOIR RANCH GRAZING LEASE

For

CITY OF CHEYENNE, WYOMING

October 29, 2018

Issued by:

**Public Works Department
City of Cheyenne, Wyoming**

Mandatory Pre-Proposal Meeting

November 8, 2018 at 8:30 AM

Proposals due

November 23, 2018 at 3:00 PM

At:

**Public Works Office, Room 210
Attn: Vicki Nemecek, Director**

**2101 O' Neil Avenue
Cheyenne, WY 82001
(307)-637-6259**

REQUEST FOR PROPOSAL (RFP-5-19)

PROJECT NAME: Belvoir Ranch Grazing Lease, Addendum 3

The City of Cheyenne, Wyoming hereby requests proposals for Livestock Grazing on City owned and leased property commonly known as the Belvoir Ranch. The land available consists of approximately 19,000 acres more or less lying south of I-80 and east of Harriman Road. (This does not include any portion of the area known as the "Big Hole"). Proposers shall be experienced and knowledgeable stockmen with a background in livestock grazing within this geographic region.

A Proposer shall submit, in writing, information outlined under the PROPOSAL FORMAT section. The submittal shall address the information requested and such other data as may be useful in evaluating the ability of the Proposer to comply with the lease. The proposal should be short and concise.

Proposals are requested in compliance with grazing herd numbers, pasture rotation, maintenance of grazing resource and herd management within the requirements listed in this Request for Proposal (RFP)

Information contained in the Request for Proposal and proposal submitted shall be incorporated by reference into and be considered part of the contract between the City and the Proposer.

Any questions or requests for clarification may be directed to the number and address below.

Due to several additional questions on this Request for Proposal, the City has scheduled a mandatory pre-proposal meeting Thursday, November 8, 2018. The meeting will be held in the Municipal Building, 2101 O'Neil Avenue, Room 208 (Public Works Director's Office) at 8:30 A.M. MST. Please attend if you are considering submitting a proposal. If you or your company is not represented at the mandatory pre-proposal meeting, the City will not consider your proposal.

Due to this pre-proposal meeting, the deadline for submission of proposals has been extended.

Please submit the completed proposal to the Public Works Office, Room 210, 2101 O'Neil Avenue, Cheyenne, Wyoming, 82001, (307)-637-6259, not later than **3:00 PM on November 23, 2018**.

Proposers must provide a Statement of Qualifications with the Public Works Office as part of any submittal. The statement should include information such as years of experience, financial ability, familiarity with region, etc. (See Proposal Format section).

PROPOSAL FORMAT

The Proposer shall use the following format when preparing their proposal:

1. Rancher/Team – Identify the rancher/team members. The headquarters, address, phone and email, if available, should be identified. Include estimated number of hands for the herd. Brief, detailed information should be included in this section to identify experience and qualifications. (Use Statement of Qualifications sheet)
2. Schedule and Bid – Review Lease Requirements carefully. Bids proposed should consider potential availability of the grazing pastures and should be clearly indicated. (Use Proposal Bid Terms sheet)
3. Ranch Area – The Proposer is expected to familiarize themselves with the Ranch area and thoroughly review all data to identify potential problems that may arise during the grazing season and bid accordingly.
4. Scope of Work – All Proposers will commit at a minimum to the services outlined in the Proposal Information, the Lease Requirements and in Exhibit “A” of the proposed lease, draft copy attached. The draft provides background and other information necessary for proposal preparation. The City will be the “Lessor,” the Livestock Owner seeking the grazing lease will be the “Lessee.”
5. Other Information – The Proposer may suggest supplements to the draft lease requirements for any additional work, cost savings for the City or clarification of work that could be beneficial for the successful completion of the lease. Any additional information the Proposer feels would be useful to the City in evaluating the proposal should also be placed in this section. (Use Alternate Proposals sheet)
6. References – Provide references and contact information. (Use Statement of Qualifications sheet)

PROPOSAL INFORMATION

- a. A City employee functioning as a ranch manager will be living on-site and be the main point of contact between the Lessee and Lessor. This person will oversee the arrival and removal of all livestock and coordinate the lease agreement activities.
- b. The City reserves the right to require immediate reduction or removal of livestock to those numbers deemed appropriate based on drought and range conditions as determined by the City.
- c. Ranch visits can be arranged with the Ranch Manager on an individual basis. Contact Karl Zunker, 307-421-8201 (cell).
- d. Grazing history and ranch condition technical information can be obtained from the Laramie County Conservation District at 307-772-2600.
- e. The Belvoir Ranch was purchased by the City of Cheyenne in response to the need to site a new landfill and develop ground water resources. (A landfill will not be placed on the Belvoir Ranch for the foreseeable future since expansion of the current landfill has been

approved.) While development of ground water resources is a future development (potentially years away), City investigative work could be ongoing on ranch property. These activities by the City and/or its agents will have priority for land use. Very little impact is anticipated to the grazing opportunities.

- f. A wind power developer (Cheyenne Wind LLC) holds a lease to potentially place wind towers on the Belvoir Ranch. This would include construction and placement of wind towers, transmission facilities, and access roads. If the developer exercises this lease, this grazing lease will be renegotiated to accommodate this development. This lease is available for review at the Public Works Office, room 210, 2101 O'Neil Ave.
- g. Portions of the Ranch may be developed for non-motorized recreational activity. This would most likely take place in the southwestern portion of the Ranch and consist of a trail from the State section adjacent to Harriman Road to the "Big Hole." Minimal impact on grazing is anticipated; however, adjustments to the lease payment may be made if grazing is reduced. Fencing and gates would be installed to ensure safety of users and cattle.
- h. Pastures are approximately outlined on the attached Pasture Map. Spraying for Larkspur by the Lessor will continue unless the Lessee proposes a suitable alternative plan.
- i. The residence at ranch headquarters (living quarters for the Ranch Manager) will not be included in this lease.
- j. The Ranch will not be grazed to maximum capacity. Approximately 1,540 Animal Unit Months (AUMs) is estimated to be the actual capacity that will be allowed. (For the purposes of this proposal and lease, one AUM = one cow/calf or .7 yearling. For example, 1,540 cow/calves = 2,200 yearlings.)
- k. All dates of use, pasture locations, and maximum numbers of head of stock will be determined by the City. The decisions will be based on range conditions at the time. Adjustments to the lease payments will be made accordingly. A minimum annual fee based on 1,050 AUMs will be required (adjusted if the City restricts the allowable number below 1,050 AUMs).
- l. One half (1/2) of the lease payment will be due upon stock arrival, 1/2 due on stock removal.

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SELECTION PROCESS

RFP responses will be reviewed by City Staff. Background checks will be done as necessary.

The City of Cheyenne retains the right to reject any or all proposals for any or no reason. The City also reserves the right to consider and rely upon factors other than pricing in its selection process.

SELECTION CRITERIA

The successful proposal will be evaluated based upon experience, reputation, past performance and payment offered for the lease. For consideration, proposals shall contain all information requested, including proposed payment amounts.

OTHER INFORMATION

Information in each proposal shall be considered public information by the City of Cheyenne. Any information considered to be privileged or confidential by the responder should not be furnished in the proposal. Contents of the proposals received and completed evaluation sheets will be made available to anyone requesting them, after the selection process has been completed and the lease awarded and executed.

SELECTION PROCESS SCHEDULE

November 23, 2018	Proposals due from interested parties.
(Tentative target dates, subject to change)	
December 10, 2018	Proposals evaluated and selected for review.
December 28, 2018	Final selection made, Agreement terms finalized with successful rancher.
January 7, 2019	City Council committee review and recommendation for approval.
January 14, 2019	City Council meeting for final action.
January 26, 2019	Grazing Lease Agreement signed with successful rancher.

LEASE REQUIREMENTS

1. Lessee must comply with all federal, state, and local regulations regarding cattle movement and grazing on the Belvoir Ranch.
2. Summer grazing normally allowed May through October depending on range conditions.
3. Range conditions permitting, no more than approximately 1,540 AUMs total will be allowed on the property. This number could be less depending on range and water availability.
4. Pasture rotation will follow a time frame as established by the City in consultation with the Laramie County Conservation District. Livestock will not be allowed to be split between pastures or moved between pastures without the express permission of the City through the Ranch Manager.
5. It is the sole responsibility of the Lessee to monitor and move cattle as required. The Ranch Manager will provide oversight only.
6. Veterinary care, medicines, and supplies and any salt or minerals will be the responsibility of the Lessee.
7. The City will not be responsible for any death loss.
8. Lessor will provide access to water. However, it is the Lessee's responsibility to check and ensure availability of water to cattle.
9. Lessor has the right to determine, under any contingent circumstances (such as flood, fire, drought, etc.), when and how many head of stock must be removed from the property. (i.e., if we run out of grass, you'll have to come get your animals).
10. The lease term is anticipated to be annual with potential renewal options of up to three (3) additional three (3) year terms with the option for the Lessor to renegotiate price.
11. Maintenance of corrals, fences, stock tanks and any other ranch facilities relating to grazing operations will be the responsibility of the Lessee. However, major repairs of the water systems, pumps, and wells will be made by the Lessor. Lessee is responsible for full repair of any damage caused to ranch facilities by Lessee's operations. Access to property will be provided a least 30 days prior to stock arrival for site preparation. Gates will be kept closed at all times.
12. Irrigated pastures near the ranch headquarters will not be included in this lease. These excluded pastures are identified as all or part of CIN 13,14,15,16,17,18 on the attached Pasture Map.
13. Up to six (6) saddle horses can be kept on the premises during the lease period. Care of stock will be the responsibility of the Lessee. Lessee may operate ATVs for cattle management. Lessee assumes all liability related to such activities.
14. All dates of use, pasture locations, and maximum numbers of head of stock will be determined by the City. The decisions will be based on range conditions at the time.

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PROPOSAL BID TERMS

Total # of AUMs (1,050 AUMs for purposes of calculating first payment)	\$ <u>1,050</u>
X Payment per AUM	\$ _____
X 5 Months	\$ _____
Equals Total Bid Price	\$ _____

PROPOSAL PAYMENT TERMS

One half of Total Bid Price is due at cattle arrival (Adjusted as necessary to reflect actual number of head at time of stock arrival.)

Second and final payment due with stock removal approximately October 31 each year. (Adjusted as necessary based on total AUMs)

The Lessee will graze and pay for a minimum of 1,050 AUMs for 5 months unless the City adjusts the number or timeframe lower based on pasture conditions.

SCHEDULE

Grazing dates of May 1 through October 31 may be adjusted by mutual agreement as conditions and requirements of the Lessor allow. Fees will be adjusted accordingly.

CONTACT PERSON

Name of Person submitting bid: _____ (Signature)
Please Print: _____ (Name)
_____ (Address)
_____ (Phone)
_____ (Date)

ALTERNATE PROPOSALS

List any proposed variations or suggestions for consideration on this lease proposal. Explain clearly any ideas, costs, reasoning, etc., to show reasonable benefit to the grazing resource and/or to lessen City maintenance costs or to enhance City revenue.

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STATEMENT OF QUALIFICATIONS

(Complete for all parties involved with this activity, repeating following format as necessary)

Name (Person/Firm): _____

Address: _____

Phone: _____

e-mail: _____

List information defining experience and ability to do job:

References:

Name: _____

Address: _____

Phone Number: _____

Name: _____

Address: _____

Phone Number: _____

Addendums 1 and 2 to Request for Proposal

Project Name: Belvoir Ranch Grazing Lease

Addendum 1: There were several questions about the Request for Proposal. We believe the best way to address these is to reprint the entire RFP (see attachment) with clarifications and changes to the original proposal shown in red.

Addendum 2: Response to question on the last five years of stocking rates and rental rates for the Belvoir Ranch.

Year	Number of Cattle	Monthly rate/head
2013	2092	\$14.27
2014	2427	\$16.50
2015	2281	\$16.50
2016	2425	\$16.50
2017	2500	\$16.50
2018	Not yet submitted	\$16.50

Note: The monthly rate is based on the number of yearlings and is not based on an AUM.